

24VECV05305 24VECV05305

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-03

Motion: DEFENDANT ANKE WEISBERG'S MOTION FOR SUMMARY JUDGMENT

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Case Number: 24VECV05305 Hearing Date: August 3, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

ADRIANA

MEJIA,

Plaintiff,

vs.

ANKE

WEISBERG; and DOES 1 to 10, inclusive,

Defendants.

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CASE

NO: 24VECV05305

[TENTATIVE]

ORDER RE: DEFENDANT ANKE WEISBERG'S MOTION

FOR SUMMARY JUDGMENT

Dept.

I

DATE:

August 3, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: October 28, 2024

TRIAL

DATE: October 26, 2026

I.

BACKGROUND

On October

28, 2024, Plaintiff Adriana Mejia ("Plaintiff") filed a complaint against Defendants Anke Weisberg ("Defendant") and Does 1 to 10 alleging three causes of action: (1) statutory strict liability pursuant to Cal. Civ. Code § 3342; (2) common law strict liability – known dangerous propensities; and (3) negligence.

On

April 7, 2026, Defendant filed the instant motion for summary judgment on Plaintiff's claim for negligence.

On

July 13, 2026, Plaintiff filed her opposition.

On

July 23, 2026, Defendant filed a reply.

II.

LEGAL

STANDARDS

In reviewing a motion for summary judgment, the Court must apply a three-step analysis: (1) identify the issues framed by the pleadings; (2) determine whether the moving party has met his or her initial burden; and (3) determine whether the opposition has demonstrated the existence

of a triable, material factual issue. (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.) “[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Cal. Code of Civ. Proc. § 437c(p)(2).)

A moving defendant may satisfy the initial burden to show that one or more elements cannot be established by “presenting evidence that conclusively negates an element of the plaintiff’s cause of action or by relying on the plaintiff’s factually devoid discovery responses to show that the plaintiff does not possess, and cannot reasonably obtain, evidence to establish that element.” (*Schmidt v. Citibank, N.A.* (2018) 28 Cal.App.5th 1109, 1119; *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 856 [it is insufficient for the defendant to merely point out the absence of evidence.]; *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.) “The defendant must present evidence, typically in the form of factually devoid discovery responses, showing that plaintiff does not have and cannot reasonably obtain evidence to support his or her claim.” (*Ibid.*)

Unless and until a defendant meets that burden, the plaintiff has no burden to present controverting evidence. (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468 [“There is no obligation on the opposing party . . . to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element . . . necessary to sustain a judgment in his favor.”].) If a defendant fails to meet that burden, summary judgment must be denied, even if the plaintiff fails to file an opposition and fails to proffer any evidence.

On the other hand, if the defendant “has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (CCP § 437c(p)(2).) The plaintiff may not merely rely on allegations or denials in its pleadings to show that a triable issue of material fact exists, but instead “shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action.” (*Ibid.*) “If the plaintiff cannot do so, summary judgment should be granted.” (*Avivi v. Centro Medico*

III. DISCUSSION

Procedural Issues

As a preliminary matter, Defendant moves for summary judgment on Plaintiff's negligence claim. (See Mot., p. 2.) However, the complaint alleges two other causes of action against Defendant: (1) statutory strict liability under Civil Code section 3342, and (2) common law strict liability. (See Plaintiff's Complaint.)

A motion for summary judgment must dispose of the entire action. A motion reaching only some causes of action is properly one for summary adjudication. Defendant argues in reply that primary assumption of risk is a complete bar to Plaintiff's two other claims, however this is not reflected in Defendant's motion for summary judgment, as the two other claims are not addressed in the motion. Therefore, the motion for summary judgment, as filed, could not dispose of the action entirely, because it only addresses the negligence cause of action.

The Court will nonetheless review the Defendant's motion on the merits.

Defendant's Burden

Defendant does not meet their initial burden.

Defendant

moves for summary judgment on the grounds that (1) primary assumption of risk bars Plaintiff's negligence claim because Plaintiff voluntarily engaged in an inherently risky activity by attempting to break up the dog fight, or alternatively (2) secondary assumption of risk bars Plaintiff's negligence claim by her failing to use the least restrictive way to de-escalate fighting dogs. (See Motion at pp. 4-6.)

a.

Primary

Assumption of Risk

The primary assumption

of risk doctrine was developed in recognition that some activities are inherently dangerous such that the defendant has no duty to protect the plaintiff from those inherent dangers. (Nalwa v. Cedar Fair, L.P. (2012) 55 Cal.4th 1148, 1154; Knight v. Jewett (1992) 3 Cal.4th 296, 308.) “The primary assumption of risk doctrine rests on a straightforward policy foundation: the need to avoid chilling vigorous participation in or sponsorship of recreational activities by imposing a tort duty to eliminate or reduce the risks of harm inherent in those activities.” (Nalwa, at p. 1156.) “It operates on the premise that imposing such a legal duty ‘would work a basic alteration—or cause abandonment’ of the activity.” (Ibid. [quoting Kahn v. East Side Union High School Dist. (2003) 31 Cal.4th 990, 1003].)

“Where

the doctrine applies to a recreational activity, operators, instructors and participants in the activity owe other participants only the duty not to act so as to increase the risk of injury over that inherent in the activity.” (Ibid. at 1154 (emphasis in original).) “When the doctrine applies, the plaintiff’s assumption of the risk acts as a complete bar to liability.” (Moser v. Ratinoff (2003) 105 Cal.App.4th 1211, 1219.) “Determining whether the primary assumption of risk doctrine applies is a legal question to be decided by the court.” (Ibid., at 1217.)

“[T]he primary assumption

of risk doctrine is not limited to activities classified as sports, but applies as well to other recreational activities ‘involving an inherent risk of injury to voluntary participants . . . where the risk cannot be eliminated without altering the fundamental nature of the activity.’” (Nalwa, supra, 55 Cal.4th at p. 1156 [quoting Beninati v. Black Rock City, LLC (2009) 175 Cal.App.4th 650, 658].) “Judges deciding inherent risk questions under Knight may consider not only their own or common experience with the recreational activity involved but may also consult case law, other published materials, and documentary evidence introduced by the parties on a motion for summary judgment.” (Ibid., at 1158.)

The primary assumption of risk doctrine does not apply to Plaintiff’s dog bite injury.

The following facts are undisputed: Plaintiff alleges

that, on June 8, 2024, she sustained injuries from a dog attack on McNulty Avenue in Winnetka, California. (Plaintiff's Response to Separate Statement of Undisputed Material Facts "PR-SSUMF" No. 1; Complaint at ¶¶ 3, 7.) The area where the attack occurred is on the sidewalk near Defendant's residence.

(PR-SSUMF No. 1; Complaint at ¶ 7.)

Plaintiff's mother opened her home's door, and Plaintiff's dog

subsequently went outside. (PR-SSUMF No. 2; Mejia Depo., at 10:20-21, 12:19-23, 13:8-9.) Defendant had her own dog who

was wearing a leash, a harness, and a collar. (PR-SSUMF No. 3; Weisberg Depo., at 21:19-23.) Plaintiff's dog ran up to

Defendant's dog, and Defendant's dog bit into Plaintiff's dog's ear. (PR-SSUMF Nos. 4, 5; Mejia Depo., at 10:22-23, 13:15-20; Weisberg Depo., at 23:23-25, 25:20-22.) Plaintiff saw Defendant's dog

bite Plaintiff's dog and that Defendant's dog was not releasing the ear.

(PR-SSUMF No. 6; Mejia Depo., at 10:20-23; Weisberg Depo., at 25:20-22.) Plaintiff attempted to separate the dogs by using her hands to open Defendant's dog's mouth. (PR-SSUMF Nos. 7, 8; Mejia Depo., at 11:11-12:5; Weisberg Depo., at 27:22-28:6.) Plaintiff's hand was caught in Defendant's dog's mouth for one to two minutes. (PR-SSUMF No. 10; Weisberg Depo., at 28:22-24.)

Here, the primary assumption of risk doctrine does not

apply. The Court of Appeal's decision in

Davis v. Gaschler is on point.

The Davis Court held it is a defendant's burden to establish a

case of primary assumption of risk where, by virtue of the nature of the activity and the parties' relationship to the activity, defendants owed no

legal duty to plaintiff. (Davis, supra, 11 Cal.App.4th at 1393.) In Davis, plaintiff was an experienced

dog breeder and stopped to help two women assist an injured dog, owned by

defendants, on the side of the road. (Id., at p. 1395.) In the process

of loading the injured dog into a car, the dog bit plaintiff. (Ibid.)

First, the Davis Court found the defendants

owed plaintiff a duty under Civil Code section 3342. (Id., at pp. 1398-1399.)

The Court next held the "veterinarian's rule" did not apply, as plaintiff was

not employed or otherwise compensated for helping injured dogs, and there was

no employment relationship or any relationship between plaintiff and

defendants. (Id., at p. 1401 [The veterinarian's rule "has been

held generally to exempt those who contract with veterinarians to treat

their dogs from liability should

the dog bite the veterinarian during treatment.” (Priebe v. Nelson (2006), 39 Cal. 4th 1112, 1122]). Accordingly, the Court found defendants failed to establish a “no-duty” primary assumption of risk applies, and the duty arising under section 3342 stands. (Davis, supra, 11 Cal.App.4th at 1401.) The Court ultimately concluded the case was one of secondary assumption of risk. (Ibid.)

Here, Defendant owes a duty to Plaintiff under Civil Code section 3342. It is undisputed that Defendant owned the biting dog. (See PR-SSUMF No. 3.) This duty exists “regardless of the former viciousness of the dog or the owner’s knowledge of such viciousness. . .” (Civ. Code, § 3342, subd. (a).) Further, Plaintiff was neither employed nor otherwise compensated for engaging with Defendant’s dog, and Plaintiff had no other relationship with Defendant, therefore the “veterinarian’s rule” is inapplicable to bring this under the primary assumption of risk doctrine. Like the Davis plaintiff, Plaintiff was injured after voluntarily engaging with Defendant’s dog.

Additionally, the primary assumption of risk applies to inherently dangerous sports and recreational activity. (See Nalwa, supra, 55 Cal.4th at p. 1156.) Breaking up a dog attack on one’s own pet is neither a sport nor a recreational pursuit voluntarily undertaken for enjoyment.

Therefore, Defendant has failed to establish primary assumption of risk applies here.

b. Secondary Assumption of Risk

Defendant argues, in the alternative, that Plaintiff’s negligence claim is barred by the secondary assumption of risk.

“Secondary assumption of risk... refers to those instances in which the defendant owes a duty of care to the plaintiff and breaches that duty, and the plaintiff knowingly encounters a risk created by the breach of the duty. Secondary assumption of risk is subsumed into the comparative fault scheme and a plaintiff’s assumption of that risk does not act as a bar to the action.” (Huffman v. City of Poway (2000) 84 Cal.App.4th

975, 993-994.)

Here,

Defendant contends that, even if Defendant owed a duty to Plaintiff, Plaintiff's own negligence would limit her recovery against Defendant. (Mot., p. 6.) Specifically, Defendant argues that Plaintiff failed to use the least restrictive method for de-escalating the fighting dogs. (Mot., p. 6.) However, as discussed above, secondary assumption of risk does not act as a bar to the action, but rather falls within comparative fault. (Huffman, *supra*, 84 Cal.App.4th at pp. 993-994.) Therefore, given that secondary assumption of risk would not bar the action, the motion for summary judgment would not be granted on that basis.

Accordingly,

Defendant has not met their initial burden of showing Plaintiff's claims are barred by either the primary assumption of risk or the secondary assumption of risk.

IV. CONCLUSION

Based

on the foregoing, Defendant Anke Weisberg's motion for summary judgment is DENIED on both procedural and substantive grounds.

Moving party is ordered to give notice.

Dated: August

3, 2026 _____

Hon. Karen Moskowitz

Judge

of the Superior Court